3	**Costa – Trust;** **30-2024-01399805**	**Motion to Enforce Settlement** Petitioner Tracy Andrews' Motion to Enforce Settlement, etc. (ROA 81) is **DENIED.** In February 2026, Petitioner Tracy Andrews (Petitioner) and Respondents Anton Pereyra and Theresa Pereya (Respondents) entered a stipulation (Settlement) intended to resolve a pending probate proceeding arising out of the Larry S. Costa Separate Property Trust (Trust). As relevant to this motion currently before the court, the Settlement mandated $175,000 would be paid into a trust for Petitioner's daughter, Ruby. The Settlement includes a provision allowing this court to retain jurisdiction under Code of Civil Procedure section 664.6 (section 664.6). (ROA 74 at p.14.) Section 664.6 reads, in full: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." Section 664.6 "was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.) Petitioner's motion to enforce the Settlement asks this court to direct Respondents to draft Ruby's trust to: (1) include "a discretionary HEMS [health, education, maintenance, and support] provision authorizing the trustee to distribute income and principal and (2) remove any restriction or reservation that would prevent or impair HEMS distributions, including any spendthrift clause. (ROA 81 at 6:7-16.) "'A settlement agreement is a contract, and the legal principles which apply to contracts generally

apply to settlement contracts.'" (*Monster Energy Co v. Schechter* (2019) 7 Cal.5th 781, 789.) The fundamental goal of contractual interpretation is to "give effect to the mutual intention of the parties as it existed at the time of contracting." (Civ. Code, § 1636.) The language of a contract "govern[s] its interpretation." (Civ. Code, § 1637.) "When a contract is reduced to writing, the intention of the parties is to be ascertained from the writing alone, if possible." (Civ. Code, § 1638.) "The words of a contract are to be understood in their ordinary and popular sense." (Civ. Code, § 1644.) "'Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to *create* the material terms of the settlement, as opposed to deciding what terms *the parties themselves* have previously agreed upon.'" (*Hernandez v. Board of Education* (2004) 126 Cal.App.4th 1161, 1176.)

On the issue of Ruby's trust, the Settlement states only: "The sum of One Hundred Seventy-Five Thousand ($175,000.00) shall be made payable to an Irrevocable Trust created by RESPONDENTS for the benefit of RUBY ("RUBY TRUST") ("RUBY TRUST PAYMENT"), with the following provisions. [¶] i. RUBY shall be the sole beneficiary of RUBY'S TRUST. [¶] ii. PETITIONER shall be the sole contingent remainder beneficiary of RUBY'S TRUST. [¶] iii. The Trustee of RUBY'S TRUST shall be a Private Professional Fiduciary ("PPF") selected by RESPONDENTS. If RESPONDENTS are unable to locate a PPF who will agree to serve as Trustee of RUBY'S TRUST within 60 (sixty) days after the [Settlement] is fully signed by the PARTIES, PETITIONER will serve as Trustee of RUBY'S TRUST. [¶] iv. RUBY'S TRUST shall be payable in full to RUBY as sole beneficiary, to be paid on the date that RUBY attains the age of twenty (25) [sic] years. [¶] v. Within three (3) days after the RUBY PAYMENT has been deposited in an account in the name of RUBY'S TRUST, RESPONDENTS, by and through their attorney, shall provide PETITIONER with written confirmation that the RUBY TRUST PAYMENT has been made." (ROA 74 at pp. 4-5.)

		The Settlement specifically gives Respondents the power to create Ruby's trust and does not include any requirement that a HEMS provision be included or that any spendthrift or other similar provision not be included. As stated above, the court can only enforce the terms of the Settlement. The motion asks the court to create terms beyond those set forth in the Settlement. Accordingly, the motion is **DENIED**. Respondents' opposition asks the court to award attorneys' fees of $2,700 to Respondents pursuant to the attorneys' fees provision in the Settlement. (ROA 74, § C (10).) The provision states the prevailing party on any dispute between the parties regarding the Settlement "shall be entitled" to the reasonable costs and expenses incurred. The court **GRANTS** Respondents' request for attorneys' fees in the amount of $2,000. Respondents are directed to give notice.
4	**Stellino – Probate; 30-2020-01169626**	**Motion to Set Aside** Administrator Nicholas A. Stellino's Motion to Set Aside Order, etc. (ROA 132) is **GRANTED in part and DENIED in part** as set forth below. By his motion, Administrator asks the court to set aside its August 12, 2022 order approving the first and final account as supplemented and issue an amended order. The court denies the request to set aside the initial order but grants the request to amend the order to include: (1) the other names by which Decedent Antonio Francis Stellino was known; and (2) the legal description of the real property located and improvements located at 2210 Clark Lane, Redondo Beach, California 90278. Administrator is directed to submit a proposed order making the above-referenced changes for the court's review and signature no later than August 26, 2026. Administrator is directed to give notice.